

3-5. 25CV03679 PATINO PADILLA, FRANCISCO v. FREEDOM FOREST MANAGEMENT, LLC

EVENTS: (1) Plaintiff's Motion to Compel Defendant Freedom Forest Management, Inc., to Provide Responses to Plaintiff's Form Interrogatories - Employment

(2) Plaintiff's Motion to Compel Defendant Freedom Forest Management, Inc., to Provide Responses to Plaintiff's Form Interrogatories - General

(3) Plaintiff's Motion to Compel Defendant Freedom Forest Management, Inc., to Provide Responses to Plaintiff's Request for Production of Documents, Set One

There is no meet and confer requirement when no response is given. See, *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411; *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906. However, it does appear that Plaintiff's counsel did attempt to meet and confer. [See Declaration of Levon Shant Yepremian at ¶¶4-9]. The Court finds Plaintiff's counsel's meet and confer efforts to have been in good faith and are sufficient for the Court to reach the merits of these Motions.

The Motions are granted, and Defendant Freedom Forest Management, LLC is ordered to provide verified responses without objection to Plaintiff's Form Interrogatories – General; Plaintiff's Form Interrogatories – Employment, and Plaintiff's Request for Production of Documents, Set One within thirty (30) days of the hearing on these Motions.

Monetary sanctions are issued against Defendant Freedom Forest Management, LLC in the amount of \$2,100. These sanctions are to be paid within thirty (30) days' of the hearing on these Motions. Counsel for the Plaintiff shall submit a form of order within two weeks.

6-7. 26CV02561 GAGE, BRITTANI v. ENTERPRISE RANCHERIA TRIBAL GOVERNMENT AND HOUSING AUTHORITY ET AL

EVENTS: (1) Specially-Appearing Defendants' Motion to Quash Service of Summons and Dismiss Complaint with Prejudice

(2) Plaintiff's Motion for Trial Preference

Specially Appearing Defendants Enterprise Rancheria Tribal Government and Housing Authority; Glenda Nelson; Donna Rodriguez; Christy Anderson; Phil Bush; Shari Ghalayini; and Heather Nydell's (collectively "Defendants" herein) Request for Judicial Notice is granted. Likewise, Plaintiff Brittani Gage's ("Plaintiff" herein) Request for Judicial Notice is granted.

The Court finds that this Court lacks subject matter jurisdiction over Plaintiff's Complaint due to Defendants' sovereign immunity and the Motion is granted. Service of Plaintiff's

Summons is quashed, the Case Management Conference on January 6, 2027 is vacated, and Plaintiff's Complaint is hereby dismissed with prejudice.

Additionally, based on the Court's ruling, Plaintiff's Second Amendment Emergency Ex Parte Application for Temporary Order Staying Execution of Fraudulent Notice and Plaintiff's Motion for Trial Preference (which fails to comply with *Code of Civil Procedure* §1005), are denied as moot.

The Court will sign the form of order submitted by Defendants.